

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 13 - 12
Amendments to the Election Laws
of the Chickasaw Nation**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Section 16-205, under Title 16 of the Code of the Chickasaw Nation, requires the review of the election laws of the Chickasaw Nation on an annual basis to determine what changes, if any, are needed, and

WHEREAS, the Legislative Committee of the Chickasaw Tribal Legislature has determined that changes to the election laws of the Chickasaw Nation are warranted.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature approves the following changes and additions to the elections of the Chickasaw Nation:

Under Title 2, SECTION 2-1048 BID SOLICITATION, add a part B., as follows:

B. If the Election Commission desires assistance in the conduction of tribal elections, it may, beginning in each calendar year, either contract with a professional firm that specializes in managing election processes for governmental entities or with a certified public accounting firm, on the basis of best and lowest bid.

Add a part C. to SECTION 2-1048 BID SOLICITATION, AS FOLLOWS:

C. The Chickasaw Election Commission shall notify the Chickasaw Tribal Legislature and the Office of the Governor of its decision of a firm chosen to assist in the conduction of tribal elections.

Amend Title 8, Section 8-204 Filing fee, to read as follows:

SECTION 8-204 FILING FEE.

The filing fee for offices of the Nation shall be:

1. Legislative Candidate: \$ 250.00;
2. Judicial Candidate: \$ 250.00;
3. Gubernatorial Candidate Team \$ 1,000.00.

A. The filing fee shall be paid by cashier's check or postal money order and payable to the Chickasaw Election Commission. A copy of this fee payment shall be kept and made available for public inspection at the Office of the Tribal Registrar.

B. The Election Secretary shall have each candidate who files for office sign a statement that there shall be no return of their filing fee. Such fees are used to help defray the expenses that are incurred in conducting the elections.

Add a part C. to SECTION 8-204 FILING FEE., to read as follows:

C. Payment of the filing fee shall entitle the candidate for office to a computer printout of the voters list for the district or districts in which they are a candidate under the provisions of this Title.

Amend Title 8, SECTION 8-208 INSPECTION OF VOTERS LISTS., to read as follows:

Delete part A. (This was repealed by Tribal Law 11-007)

Re-number part B. as part A., and amend to read as follows:

A. Qualified candidates shall receive a computer print out of the voters list for the district or districts for which they are a candidate. Such list shall contain, only, each voters name, address, and zip code, and shall be available on the Wednesday following the date that the filing period for candidates officially closes. All qualified candidates receiving such list shall, on the Thursday after voter registration closes, receive a list of the qualified voters that were added up to the time registration closed. There shall be no additional charge for the updated list. Candidates whose eligibility has been challenged shall receive their votes list after the Chickasaw Election Commission has affirmed their eligibility.

Amend Title of SECTION 8-209 from VOTERS LIST FEES. to MAILING LABEL FEES.

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Delete parts A. and B. of SECTION 8-209

Renumber part C. to part A, SECTION 8-209, to read as follows:

A. Qualified candidates for elective office of the Chickasaw Nation shall be entitled to purchase self-adhesive mailing labels of the registered voters for each district in which they area a candidate at a cost of \$50.00 per district.

Under Title 8, delete all of SECTION 8-211 DISTRIBUTION OF VOTER INFORMATION., and reserve the number for future legislation.

Under Title 8, amend SECTION 8-302 VOTER REGISTRATION CLOSING DATE., to read as follows:

A Chickasaw citizen may register by contacting the Tribal Registrar's office at the headquarters. Contact may be in person or by writing to the Tribal Registrar.

Amend part B. to SECTION 8-304 VOTER REGISTRATION CLOSING DATE., to read as follows:

B. Voter registration shall close fifteen (15) days prior to the normal election date and shall remain closed fifteen (15) days after said date, or the runoff election date, whichever is later. It shall be the responsibility of the Tribal Registrar to switch districts for voters requesting such changes only during the time registration is open.

Add a part D. to SECTION 8-304, to read as follows:

D. During the open registration period and at such other times as may be deemed necessary, the Election Secretary shall direct the Tribal Registrar to cause to be published in the Chickasaw Times newspaper, a list of voters whose ballots have been returned as undeliverable by the United States Postal Service, which shall serve to notify such voters that their voter registration shall be placed in an inactive status. Such voters shall not receive any ballots for tribal elections nor shall they be eligible to vote in any tribal elections until such time as the voters inform Tribal Registration of a correct residency and mailing address. The Tribal Registrar may include a voter registration form as part of such publication, as an aid to voters who need to correct their residency and mailing address information. Any such changes for corrections that are submitted after the registration period closes shall be held by the Tribal Registrar until registration re-opens and no ballots shall be mailed to them when they fail to submit their corrected voter information prior to the closing date for voter registration.

Under Title 8, combine and amend SECTION 8-305 VOTER'S PERMANENT ADDRESS., SECTION 8-306 WHICH OFFICES TO VOTE ON., and SECTION 8-307 NONRESIDENT VOTERS, AFFILIATION WITH DISTRICTS., into a new SECTION 8-305, to read as follows:

SECTION 8-305 RESIDENT AND NON-RESIDENT REGISTRATION.

A. A voter, residing within the boundaries of the Chickasaw Nation, must designate a current residence on the tribal voter's registration in order to determine their designated district within the Chickasaw Nation.

B. In accordance with Article VI, Section 4, of the Constitution, each non-resident voter shall choose one district for the purpose of voting. The non-resident voter may affiliate with the district of his choice, in accordance with the provisions of part A. of this Section and the provisions of Section 8-304.

Reserve SECTION 8-306 for future legislation.

Reserve SECTION 8-307 for future legislation.

Amend part B, SECTION 8-401 MAIL BALLOTS, to read as follows:

B. Each candidate for elective office within the Chickasaw Nation shall have his/her names printed on the ballot as it appears on the filing form they complete.

Amend part B., of SECTION 8-402 BALLOT MAILING TO VOTERS., to read as follows:

B. Each qualified voter shall be mailed a ballot(s), and voter instruction sheet and a return envelope or other mailing material that will ensure the secrecy of their vote(s).

Re-number part C. as part D. of SECTION 8-402 BALLOT MAILING TO VOTERS., and add a new part C., to read as follows:

C. When a firm that provides an automated election service or when an accounting firm is selected by the Election Commission to assist in the conduction of tribal elections, such measures as deemed appropriate by the firm selected shall be utilized to ensure the secrecy of the votes cast.

Add a part E., to SECTION 8-402 BALLOT MAILING TO VOTERS., to read as follows:

E. Mail ballots shall conform to the specifications of Section 8-406 through Section 8-408, except when specifications of the accounting firm or the automated election service firm provides

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for more efficient methods without compromising the secrecy of the votes cast.

Amend part A., of SECTION 8-403 RETURN DATE., to read as follows:

A. A special post office box in Ada, Oklahoma, shall be secured in the name of the Chickasaw Election Commission, for the purpose of receiving returned ballots. Such post office box may be secured directly by the Election Commission or require it as a condition of any contract with any accounting firm or automated election service firm. Such return envelopes for those ballots will be imprinted with that post office box number.

Amend part C., of SECTION 8-403 RETURN DATE., to read as follows:

C. Ballots that have been delivered to the post office and placed in the Commission's special post office box before 9:00 a.m. on the date that ballots are to be counted shall be collected by the person(s) designated by the selected firm or by a person(s) designated by the Election Commission to collect the ballots. Any ballots deposited in the post office box after the ballots have been collected on tabulation day shall not be counted.

Amend part A., of SECTION 8-409 MARKING BALLOTS., to read as follows:

A. Mailed ballots shall include proper instructions to the voter regarding the marking and sealing of his/hers ballot. The voter shall mark and seal his/her ballot in accordance with the instructions provided with the mail ballot. If the ballot envelope requires a signature, such signature, at the discretion of the voter, may be notarized in accordance with the provisions of Section 8-408 of Title 8 of the Code of the Chickasaw Nation. Such notarization, although not required, is recommended, and information to this effect shall be provided in the instructions sent to the voter.

Amend SECTION 8-410 INVALID BALLOTS., to read as follows:

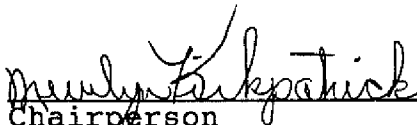
A. Ballots shall be counted invalid for any of the following reasons:

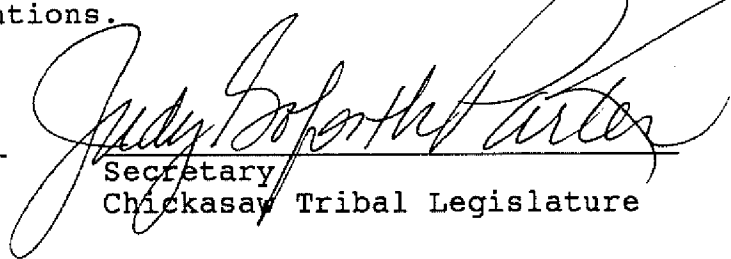
1. The ballot is received after 5:00 p.m. on the third Monday in August of the election year;
2. The ballot is not returned in the inner envelope;
3. The inner envelope is not returned in the outer envelope;

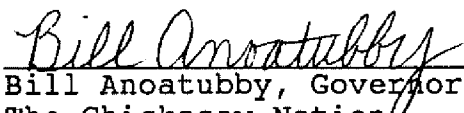
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4. The signature is not readily identifiable as that of the registered voter's signature which appears on the voter's registration form. The Election Commission shall have the authority to determine the validity of the voter signatures;
5. The ballot is not marked;
6. The ballot is marked incorrectly;
7. The ballot is too soiled or defaced to read;
8. More than one of each ballot is returned in the inner envelope.

Executed in a regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 19, 1996, by a vote of 8 ayes, 2 nays, 2 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 19 1996